

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
LUIS CABRERA,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. RICHARD
DELAHANTY, Tax Id. No. 961732, Individually and in
his Official Capacity, and POLICE OFFICERS "JOHN
DOE" #1-10, Individually and in their Official Capacity
(the name John Doe being fictitious, as the true names
are presently unknown),

Defendants.

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SUMMONS

Jury Trial Demanded

Plaintiff designates Bronx County
as the place of trial.

The basis of venue is:
CPLR § 504(3)

To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
April 15, 2022

COHEN & FITCH LLP
Attorneys for Plaintiff
110 E. 59th St, Suite 3200
New York, N.Y. 10022
(212) 374-9115

TO:

SYLVIA HINDS-RADIX
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

P.O. RICHARD DELAHANTY, Tax Id. No. 961732
Police Service Area ("PSA") 8
2794 Randall Ave.
Bronx, NY 10465

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

LUIS CABRERA,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. RICHARD DELAHANTY, Tax Id. No. 961732, Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

VERIFIED COMPLAINT

Jury Trial Demanded

**BASIS FOR VENUE:
CPLR § 504**

PARTIES

1. Plaintiff LUIS CABRERA is a Latino male, a citizen of the United States, and at all relevant times a resident of the County of Bronx, City, and State of New York.

2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department ("NYPD"), duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants P.O. RICHARD DELAHANTY, Tax Id. No. 961732 and POLICE OFFICERS "JOHN DOE" #1-10

(the name John Doe being fictitious, as the true names are presently unknown)(“NYPD Defendants”), were duly sworn police officers of the NYPD and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

FACTS

8. On or about February 16, 2021, at approximately 6:30 p.m., plaintiff was lawfully present in the vicinity of E. 167th St. and Walton Ave., Bronx, NY.

9. At the aforesaid time and place, plaintiff, who did not possess any weapons and/or contraband, and was not a danger or threat to any person, was accosted by law enforcement officers namely, – defendants DELAHANTY and/or POLICE OFFICERS “JOHN DOE” #1-10.

10. Despite the fact plaintiff was unarmed, was not a threat, and did not possess any contraband whatsoever, defendant DELAHANTY unholstered his service weapon, pointed said firearm in plaintiff’s direction, and then fired said weapon multiple times at plaintiff and his

vehicle on a crowded street, discharging approximately six (6) rounds at plaintiff as he drove in the opposite direction.¹

11. Some or all of the rounds fired by defendant DELAHANTY struck plaintiff's vehicle, causing the glass windows and/or windshield(s) of said vehicle to shatter, and further causing glass shards to strike plaintiff, causing him physical injury – namely, inter alia, a laceration to his neck causing by broken/flying glass shards.

12. At no time was the force used against plaintiff by defendant DELAHANTY reasonable and/or justified under the circumstances as plaintiff was unarmed, not a threat, did not possess any contraband, and was driving in the opposite direction away from defendants DELAHANTY and/or POLICE OFFICERS "JOHN DOE" #1-10.

13. After being shot at by defendant DELAHANTY, plaintiff, who was scared for his life, drove off and parked said damaged vehicle in the vicinity of 1592 Jesup Ave., Bronx, NY.

14. Soon thereafter, plaintiff became aware that detectives from the NYPD were looking for him and immediately turned himself into the police, at which time he was handcuffed and searched. However, no weapons and/or contraband were recovered from plaintiff's person and/or effects as a result of same.

15. Plaintiff remained in police custody at an NYPD precinct for several hours, was processed, and was charged with Aggravated Unlicensed Operation of a Motor Vehicle, Reckless Driving, and a violation of the Vehicle and Traffic Law (VTL).

16. At no time was plaintiff charged with any crimes and/or violations concerning assaulting, harassing, and/or placing any police officers in harm's way. On the contrary, the only

¹ As a result of this reckless firearm discharge on February 16, 2021, on or about March 8, 2022, defendant DELAHANTY was indicted by the Bronx District Attorney's Office for Reckless Endangerment in the 2nd Degree under Indictment No. IND-70722-22.

person facing criminal charges for putting others – including plaintiff and members of the public – in harm’s way in relation to this incident is defendant DELAHANTY.

17. Subsequently, plaintiff was transported to Central Booking where he was searched again, subjected to a retina scan (a.k.a. an “eye scan”), moved from cell to cell, and further detained. No contraband was found on plaintiff’s person and/or effects as a result of any searches nor did plaintiff have custody or control over any contraband.

18. In connection with plaintiffs’ arrest, upon information and belief, defendants DELAHANTY and/or POLICE OFFICERS “JOHN DOE” #1-10 filled out false and/or misleading police reports (and/or otherwise provided false information concerning the herein mentioned events) and forwarded them to prosecutors at the Bronx County District Attorney’s Office. Thereafter, defendants DELAHANTY and/or POLICE OFFICERS “JOHN DOE” #1-10 repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff’s arrest. Specifically, defendants DELAHANTY and/or POLICE OFFICERS “JOHN DOE” #1-10 falsely stated, *inter alia*, that defendant DELAHANTY had injured his hand when plaintiff attempted to close same in his window. However, objective video footage of the incident clearly showed that plaintiff never attempted to close his window on defendant DELAHANTY’s hand. Rather, defendant DELAHANTY injured his own hand when he reached out and tried to grab onto plaintiff’s car door handle as plaintiff was driving away.

19. As a result of the foregoing, plaintiff sustained, *inter alia*, physical injuries, property damage to his vehicle, economic damages, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

20. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

21. All of the aforementioned acts of defendants, their agents, servants, and employees, were carried out under the color of state law.

22. All of the aforementioned acts deprived plaintiff of the rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

23. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and/or correctional officers, with all the actual and/or apparent authority attendant thereto.

24. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and corrections officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, and the New York City Department of Corrections, all under the supervision of ranking officers of said departments.

25. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

26. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the previous paragraphs with the same force and effect as if fully set forth herein.

27. The level of force employed by defendant DELAHANTY was objectively unreasonable and in violation of the constitutional rights of the plaintiff.

28. As a result of the foregoing, plaintiff sustained, inter alia, bodily injuries, including, but not limited to, a laceration to his neck, pain, and bleeding, and emotional distress.

THIRD CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

29. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

30. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

31. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York, the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- ii. utilizing excessive force in effectuating arrests when there is no excuse or justification for any such force; and,
- iii. failing to intercede to prevent violations of plaintiff's constitutional rights; and,
- iv. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, use excessive force, and/or commit

perjury in order to cover up police misconduct.

32. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York, the New York City Police Department constituted deliberate indifference to the safety, well-being, and constitutional rights of the plaintiff.

33. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York, the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

34. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York, the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

35. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.

36. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.

37. The acts complained of deprived the plaintiff of his right:

- i. To be free from cruel and unusual punishments;
- ii. To receive timely and adequate medical care;
- iii. To be provided with appropriate safety while in custody;
- iv. Not to have summary punishment imposed upon him; and
- v. To receive equal protection under the law.

PENDANT STATE CLAIMS

38. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

39. On or about May 7, 2021, within (90) days after the claim herein accrued, the plaintiff duly served upon, presented to, and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

40. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

41. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h and said hearing was held on or about December 21, 2021.

42. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

43. Plaintiff has complied with all conditions precedent to maintaining the instant action.

44. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ASSAULT

45. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

46. Defendants' DELAHANTY and/or POLICE OFFICERS "JOHN DOE" #1-10 aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

47. As a result of defendants' conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

**SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW
BATTERY**

48. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

49. Defendants DELAHANTY and/or POLICE OFFICERS "JOHN DOE" #1-10 touched plaintiff in a harmful and offensive manner.

50. Defendants DELAHANTY and/or POLICE OFFICERS "JOHN DOE" #1-10 did so without privilege or consent from plaintiff.

51. As a result of defendants' conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

**THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENCE/GROSS NEGLIGENCE/RECKLESSNESS**

52. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

53. Defendant THE CITY OF NEW YORK, through its employees, agents, and/or representatives, to wit defendants DELAHANTY and/or POLICE OFFICERS "JOHN DOE" #1-10, committed the foregoing acts.

54. Defendant THE CITY OF NEW YORK through its employees, agents, and/or representatives, to wit defendants DELAHANTY and/or POLICE OFFICERS “JOHN DOE” #1-10, did not take any meaningful steps to prevent the foregoing from occurring.

55. At all times herein defendants DELAHANTY and/or POLICE OFFICERS “JOHN DOE” #1-10 were acting in the scope of their employment.

56. Defendants DELAHANTY and/or POLICE OFFICERS “JOHN DOE” #1-10 were negligent, grossly negligent, reckless, and/or careless when they committed the foregoing acts of *inter alia*, shooting at plaintiff, who was unarmed, was not a threat, and was driving away from said officers.

57. Defendants DELAHANTY and/or POLICE OFFICERS “JOHN DOE” #1-10 were negligent, grossly negligent, reckless, and/or careless in that they failed to take steps to avoid the occurrence; and were otherwise negligent, grossly negligent, careless, and reckless; and, when they failed to prevent the foregoing acts from occurring.

58. Defendants DELAHANTY and/or POLICE OFFICERS “JOHN DOE” #1-10 owed a duty to plaintiff as a person they were taking into custody and/or by affirmatively creating the dangerous condition which caused plaintiff’s injuries.

59. Defendants DELAHANTY and/or POLICE OFFICERS “JOHN DOE” #1-10 breached their duty to protect plaintiff resulting in injuries.

60. The foregoing incidents and the resulting injuries to plaintiff’s person were caused solely and as a direct and proximate cause of the carelessness, negligence, gross negligence, and/or recklessness on the part of the defendant THE CITY OF NEWYORK, their servants, agents, employees, and/or licensees, to wit, defendants DELAHANTY and/or POLICE

OFFICERS “JOHN DOE” #1-10 and without any negligence on the part of the plaintiff contributing thereto.

61. By reason of the foregoing, the plaintiff has been seriously and severely injured and damaged, suffered physical pain, inconvenience, alarm, extreme emotional distress, and other consequences of such injuries.

62. Due to the negligence and/or gross negligence of defendants DELAHANTY and/or POLICE OFFICERS “JOHN DOE” #1-10 as set forth above, plaintiff suffered serious physical injury, mental injury, pain, and trauma, together with embarrassment, humiliation, shock, and fright.

FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

63. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

64. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

65. The aforementioned conduct was committed by defendants DELAHANTY and/or POLICE OFFICERS “JOHN DOE” #1-10 while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

66. The aforementioned conduct was committed by defendants DELAHANTY and/or POLICE OFFICERS “JOHN DOE” #1-10 while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

67. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

68. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress, and physical and mental injuries, together with embarrassment, humiliation, shock, and fright.

**FIFTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT INFLECTION OF EMOTIONAL DISTRESS**

69. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

70. Defendants DELAHANTY and/or POLICE OFFICERS “JOHN DOE” #1-10 owed a duty to maintain plaintiff’s safety and well-being.

71. Defendants DELAHANTY and/or POLICE OFFICERS “JOHN DOE” #1-10 breached that duty by failing to protect him and endangering his physical safety.

72. Defendants DELAHANTY and/or POLICE OFFICERS “JOHN DOE” #1-10 placed plaintiff in the zone of danger.

73. The aforementioned conduct of defendants DELAHANTY and/or POLICE OFFICERS “JOHN DOE” #1-10 was extreme and outrageous and exceeded all reasonable bounds of decency.

74. Defendants DELAHANTY and/or POLICE OFFICERS “JOHN DOE” #1-10’s breach was the direct and/or proximate cause of plaintiff’s injuries.

75. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, and fright.

**SIXTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION**

76. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

77. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned, and supervised all members of its Police Department and Department of Corrections, including the defendants individually named above.

78. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department and Department of Corrections including the defendants individually named above.

79. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned, and supervised all members of its Police Department and Department of Corrections, including the defendants individually named above.

80. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department and Department of Corrections including the defendants individually named above.

81. Due to the negligence of the defendants as set forth above, plaintiff suffered physical injury, pain, and trauma.

82. As a result of the foregoing, plaintiff is entitled to compensatory damages and is further entitled to punitive damages against the individual defendants.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs, and disbursements of this action.

Dated: New York, New York
April 15, 2022

BY: _____/S_____
Ilyssa S. Fuchs, Esq.
Cohen & Fitch LLP
Attorneys for Plaintiff
110 E. 59th St., Suite 3200
New York, New York 10022
(212) 374-9115

ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, states:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for the plaintiff LUIS CABRERA in the within entitled action.

That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
April 15, 2022

_____/S_____
ILYSSA S. FUCHS